

Court No. - 29

Case :- WRIT - C No. - 26457 of 2019

Petitioner :- Meena Devi

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sunil Kumar Yadav, Sanjeev Kumar Sharma

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard learned counsel for the petitioner. Sri Mahboob Ahmad, Advocate has accepted notice on behalf of respondents no.2 and 3.

The petitioner in challenging the recovery citation dated 24.07.2019 for a sum of Rs.7,55,194/- submits that he is ready and willing to make payment of said electricity dues provided installments are fixed.

Under Clause 6.14 of U.P. Electricity Supply Code, 2005, the Executive Engineer concerned is the competent authority to grant time for payment in installments.

In view of the above, we ***dispose off*** the petition with liberty to the petitioner to approach the Executive Engineer for the purposes of fixation of installments. In case any such application is filed within a period of six weeks from today, the Executive Engineer shall consider it in accordance with law and do the needful most expeditiously.

Order Date :- 11.9.2019

S.Sharma